

Gajendra Prasad Bhatnagar v. State of U.P.

Allahabad High Court · Division Bench · 12 February 2018 · WRIT - C No. - 5552 of 2018 · **Writ disposed; petitioner relegated to Superintending Engineer under cl. 4.6(f).**

HEADNOTE

A consumer challenged as excessive the Corporation's estimate for a 5 HP pumping-set connection. The Division Bench treated the controversy as purely factual and held that Clause 4.6(f) of the U.P. Electricity Supply Code, 2005 channels estimate disputes to the authority one level higher than the sanctioning authority and thereafter the CGRF. The writ was disposed with liberty to represent to the Superintending Engineer for a reasoned speaking order in accordance with law.

FACTUAL SUMMARY

Gajendra Prasad Bhatnagar sought a 5 HP pumping-set connection and challenged the Corporation's estimate of Rs 1,84,037 as highly excessive, attributing it to not tapping a transformer about 100 metres away. Counsel for the Corporation stated he was entitled to a subsidy of Rs 68,000, leaving Rs 1,17,567 payable. The line chart annexed to the estimate showed the Corporation would also provide a 25 KV transformer. The Division Bench declined to try those facts on the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6(f)

estimate disputes

HOLDING

Disputes over the estimate for grant of a new connection, being purely factual, are to be adjudicated under Clause 4.6(f) by the competent authority one level higher than the sanctioning authority and thereafter the Consumer Grievance Redressal Forum; the writ court will not decide them and will relegate the consumer to that authority (here, the Superintending Engineer) to consider and decide the representation by a reasoned speaking order in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ESTIMATE OF RS 1,84,037 (RS 1,17,567 AFTER SUBSIDY) FOR THE 5 HP PUMPING-SET CONNECTION WAS EXCESSIVE, AND WHETHER THE CONNECTION SHOULD HAVE BEEN GIVEN FROM THE TRANSFORMER 100 METRES AWAY

treated as purely factual and left to the Superintending Engineer under cl. 4.6(f) ¶ 1